

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order adopting this tentative ruling will serve as the order of the court and service by the clerk will constitute notice of the order.

Tentative Ruling

Issued By: SMC **on** 7/29/26.
(Judge's initials) (Date)

(47)

Tentative Ruling

Re: ***Jared Schriver v. Nathan Pearsey***
Superior Court Case No. 25CECG03697

Hearing Date: July 30, 2025 (Dept. 403)

Motion: Plaintiff Jared Schriver Motion to Compel Production of Documents from Defendant Nathan Pearsey and Form Interrogatories from Defendant Jocelyn Pearsey

Tentative Ruling:

To find the motions moot, except to grant reasonable sanctions in the sum of \$1,555.90 against Defendants Nathan Pearsey and Jocelyn Pearsey, in favor of plaintiffs, to be paid to plaintiffs' counsel at the Jurewitz Law Group, within 30 days of service of the minute order by the clerk.

Explanation

Defendants Nathan Pearsey and Jocelyn Peasey have provided responses to the aforementioned requests.

If anyone engages in conduct that is a misuse of the discovery process, the court may impose reasonable monetary sanctions. (Code Civ. Proc., §§ 2023.030, 2030.290, 2031.320.) Where responding party provided the requested discovery after the motion to compel was filed, the court is authorized to award sanctions. (Cal. Rules of Court, rule 3.1348(a).)

Plaintiff Jared Schriver ("Schriver" or "plaintiff") seeks sanctions a total amount of filing both motion in the amount of \$5,065.00 comprised of 8.6 hours in preparation and anticipated time, at a rate of \$650, as well \$155.90. (Joseph Decl., ¶16.)

Under these circumstances, the Court finds that both the hourly rate and time spent on these motions are unreasonable. These are basic motions to compel. The Court reduces the hours spent preparing each motion to 2 hours, at a more appropriate rate of \$350/hr. Where a party is seeking out-of-town rates, he or she is required to make a "sufficient showing...that hiring local counsel was impractical." (*Nichols v. City of Taft* (2007) 155 Cal.App.4th 1233, 1244.) Plaintiff has made no showing of any attempt to seek local counsel. There are local counsel who handle similar cases. Local rates are therefore appropriate.

Accordingly, the court finds that the reasonable amount of attorney fees to award as sanctions on these nearly identical motions is a total of \$1,555.90.

Pursuant to California Rules of Court, rule 3.1312(a), and Code of Civil Procedure section 1019.5, subdivision (a), no further written order is necessary. The minute order

